UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

LEAGUE OF LATIN AMERICAN CITIZENS, et al., Plaintiffs,	§	
v.	§	CIVIL ACTION NO. 1:26-CV-00729-ADA-SH
JANE NELSON, in her official capacity as the Texas Secretary of State, et al., Defendants.	§	

DEFENDANT PAUL ADAMS'S RULE 12 MOTION TO DISMISS, AND BRIEF IN SUPPORT

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Defendant Paul Adams, in his official capacity as Dallas County Elections Department ("Administrator Adams"), pursuant to Rules 12(b)(1) and 12(b)(6) of the Federal Rules of Civil Procedure, files his motion to dismiss Plaintiffs' claims alleged against him in Plaintiffs' original complaint (ECF No. 1) (the "Complaint").

I. INTRODUCTION AND OVERVIEW

As the Dallas County Elections Administrator, Defendant Paul Adams endeavors to ensure that all who are entitled to vote in Dallas County are afforded that opportunity. Administrator Adams, however, is not empowered or authorized to change Texas or federal law regarding voter verification processes or control the processes adopted by the Texas Secretary of State.

Plaintiffs brought suit against the Election Administrators from Dallas County (Paul Adams), Denton County (Frank Phillips), Brazoria County (Joyce Hudman), and Collin County (Kaleb Breaux), along with the Texas Secretary of State Jane Nelson, challenging practices that allegedly violate Section 8 of the National Voter Registration Act. Specifically, Plaintiffs allege that the State of Texas has adopted a "troubling voter purge program that relies on unvetted, outdated citizenship data to remove voters from rolls in ways that are discriminatory and non-uniform across counties." Plaintiffs further allege that they filed suit to "vindicate rights under the National Voter Registration Act ("NVRA")." Plaintiffs also seek relief pursuant to 42 U.S.C. § 1983.

In sum, Plaintiffs complain of the Texas Secretary of State's 21 October 2025 Directive to County Elections Administrators to investigate possible ineligible, i.e., non-citizen voters inclusion on voter registration rolls, and more specifically, the manner in which Secretary Nelson created the list of potential ineligible voters, and the instructions given to County Election Administrators/Registrars. For example, Plaintiffs allege that Secretary Nelson did not "instruct county officials to consult citizenship data gathered by DPS before taking steps to purge voters flagged by the SAVE search," and that, "[u]nsure of how to respond to its sudden launch,

counties have implemented the Purge Program in different, non-uniform ways throughout the state, with some counties taking no action in response to the Purge Lists; other sending notices to all those on the Purge Lists with no investigation; and others undertaking investigations and purging voters."

II. GROUNDS FOR RELIEF

Administrator Adams requests the Court to dismiss Plaintiffs' claims against him on the following grounds:

1. Plaintiffs have failed to establish statutory or Article III standing and, therefore, the Court lacks subject matter jurisdiction. Fed. R. Civ. P. 12(b)(1) and/or 12(b)(6).
    - Plaintiffs have failed to provide proper notice under the NVRA to Administrator Adams.
    - Plaintiffs have not suffered an actual injury-in-fact that is fairly traceable to the challenged actions of Administrator Adams, but instead allege a generalized grievance related to actions by the State of Texas, by and through its Secretary of State.
2. Plaintiffs' claims against Administrator Adams present a non-justiciable political question. Fed. R. Civ. P. 12(b)(6).
3. Plaintiffs have failed to state a claim upon which relief can be granted.
    - Plaintiffs' claims purportedly brought under the NVRA are both conclusory and speculative, and do not plausibly allege a viable claim for relief.
    - Plaintiffs have failed to plausibly plead any claims under 42 U.S.C. § 1983.
4. Plaintiffs' claim for declaratory relief is foreclosed by the unavailability of an underlying justiciable right. Therefore, Plaintiffs have failed to state a claim upon which relief can be granted. Fed. R. Civ. P. 12(b)(6).

III. ARGUMENT AND AUTHORITIES

A. The Court lacks subject-matter jurisdiction because Plaintiffs lack standing, as Plaintiffs have not suffered an actual injury-in-fact that is fairly traceable to the challenged actions of Administrator Adams, and Plaintiffs do not aver more than a generalized grievance concerning Administrator Adams.

Federal courts are courts of limited jurisdiction and—absent jurisdiction conferred by statute or the United States Constitution—are without power to adjudicate claims. Kokkonen v. Guardian Life Ins. Co., 511 U.S. 375, 377 (1991). A court must dismiss an action when it lacks subject-matter jurisdiction, and the plaintiff bears the burden of proof to survive a Rule 12(b)(1) motion. Id.; Howery v. Allstate Ins. Co., 243 F.3d 912, 916 (5th Cir. 2001). A district court may dismiss for lack of subject matter jurisdiction based on (1) the complaint, (2) the complaint supplemented by undisputed facts in the record, or (3) the complaint supplemented by undisputed facts plus the court's resolution of disputed facts. In re FEMA Formaldehyde Products Liability Litigation, 668 F.3d 281, 287 (5th Cir. 2012). The most fundamental principle concerning the judicial branch's role in our government is the Constitution's limitation of federal-court jurisdiction to actual cases or controversies. U.S. Const. art. III, § 2; Spokeo, Inc. v. Robins, 578 U.S. 330, 337 (2016). There is no case or controversy when the plaintiff lacks standing to sue. FW/PBS, Inc. v. City of Dallas, 493 U.S. 215, 231 (1990).

1. Interaction between National Voter Registration Act and Texas Election Code, and absence of illegal or improper conduct by Administrator Adams.

The National Voter Registration Act ("NVRA") sets out voter registration processes and voter registration list maintenance. 52 U.S.C. § 20501(b)(3)-(4). Texas likewise has an election code which, in pertinent part, sets out procedures for cancellation of voter registration because of citizenship status. TEX. ELEC. CODE § 16.0332.

In Campaign Legal Center, a case dealing with the NVRA, the Fifth Circuit reversed the district court's issuance of an injunction—with instructions to dismiss the case—and succinctly described the interaction of the NVRA and Texas Election Code:

> The NVRA also provides that resident citizens can register to vote in a state when they apply for or renew their driver's licenses. See id. § 20504. The state must, however, cross-check registrations to ensure that only eligible voters remain on the rolls. See id. § 20507. To do so, the Texas Secretary of State ("the Secretary") periodically compares information in the existing statewide computerized voter registration list against citizenship information in the database of the Department of Public Safety ("DPS"). TEX. ELEC. CODE § 16.0332(a-1). Next, the Secretary sends the names of any potentially ineligible voter to appropriate local registrars. See id. §§ 16.033(a), .0332(a). If registrars determine a voter may be ineligible, they send "a written notice requiring the voter to submit to the registrar proof of United States citizenship." Id. § 16.0332(a). Failure to provide such proof can lead to cancellation of voter registrations. See id. §§ 16.033, 16.0332(b).

Campaign Legal Ctr. v. Scott, 49 F.4th 931, 933 (5th Cir. 2022). Plaintiffs are certainly aware of this statutory procedure contained in the Texas Election Code, because Plaintiffs discuss that code throughout their Complaint. But, Administrator Adams did exactly what the law requires, and Plaintiffs do not plead otherwise.

What emerges from Plaintiffs' Complaint is really that their concern lies with the statutory scheme under which the County-level Defendants are authorized to act. Administrator Adams, however, is not empowered or authorized to change Texas or federal law. The resolution sought by Plaintiffs rests with the Congress or the Texas Legislature.

B. Plaintiffs lack Article III standing.

1. Plaintiffs fail to plead facts that establish organizational or associational standing.

As noted above, there is no case or controversy when the plaintiff lacks standing to sue. FW/PBS, 493 U.S. at 231. To have standing, "[t]he plaintiff must have (1) suffered an injury in fact, (2) that is fairly traceable to the challenged conduct of the defendant, and (3) that is likely to be redressed by a favorable judicial decision." La Union Del Pueblo Entero v. Abbott, 151 F.4th 273, 285 (5th Cir. 2025), petition for cert. filed, No. 25-904, Feb. 2, 2026 (quoting Spokeo, 578 U.S. at 338). Plaintiffs "must establish standing for each and every provision they challenge." In re Gee, 941 F.3d 153, 160 (5th Cir. 2019).

All of the Plaintiffs in this case are organizations; there are no natural person plaintiffs. An organization "may have standing either by showing it can sue on behalf of its members

('associational' standing) or sue in its own right ('organizational' standing)." Texas State LULAC v. Elfant, 52 F.4th 248, 253 (5th Cir. 2022). Therefore, the Court must address associational and organizational standing. "'Associational standing' is derivative of the standing of the association's members, requiring that [1] they have standing and [2] that the interests the association seeks to protect be germane to its purpose." OCA-Greater Houston v. Texas, 867 F.3d 604, 610 (5th Cir. 2017). Organizations suing on their own behalf "must satisfy the usual standards for injury in fact, causation, and redressability that apply to individuals." FDA v. All. for Hippocratic Med., 602 U.S. 367, 393-94 (2024).

Here, Plaintiffs do not explicitly allege which flavor of standing they rely upon, but they allege that courts have found two of them, LULAC and LULAC Council 102, to have shown organizational or associational Article III standing in other civil actions. Plaintiffs fail to identify any particular person wrongfully identified by the county-level defendants as ineligible voters who were wrongfully purged from voter lists due to their citizenship status. The foci of Plaintiffs' Complaint is more about the Secretary of State's purported deficiencies in the method of the verification process rather than a concrete and particularized injury to a specific person. That alone does not confer standing. As the Fifth Circuit clearly explained in Campaign Legal Center, the doctrines of informational and organizational standing do not derogate from the elemental requirement that an alleged injury be concrete and particularized. See Campaign Legal Ctr., 49 F.4th at 938.

Also, to support standing, a plaintiff's injury must be more than speculative and must be "certainly impending." Clapper v. Amnesty Int'l USA, 568 U.S. 398, 409 (2013). That requirement applies in suits brought under the NVRA. Stringer v. Whitley, 942 F.3d 715, 721 (5th Cir. 2019) ("whether compliance with the NVRA would prevent future injury to others is irrelevant; plaintiffs seeking injunctive relief must show a continuing or threatened future injury to themselves").

In Campaign Legal Center, and more recently in La Union, the Fifth Circuit addressed standing of LULAC and similar organizations, and particularly, the element that a plaintiff must

suffer "an injury in fact that is (a) concrete and particularized and (b) actual or imminent." Campaign Legal Ctr., 49 F.4th at 935; La Union, 151 F.4th at 285-88. Absent such injury there is not a case or controversy for the federal court to resolve. The Fifth Circuit ultimately concluded that the plaintiffs in those cases lacked standing, in whole or in part. See Campaign Legal Ctr., 49 F.4th at 937-939; La Union, 151 F.4th at 285-88.

In La Union, the plaintiffs argued that organizational standing existed because, inter alia, the challenged statutes:

- made it harder to recruit members due to fear of prosecution;
- "chilled" their activities; and
- required them to "expend resources" to educate their members about the new laws.

La Union, 151 F.4th at 286-87. The Fifth Circuit rejected those arguments. See id.

The Fifth Circuit also rejected the plaintiffs' arguments that they had standing because their members' injury was the loss of voting rights, not fear of prosecution under the challenged statutes. Id. at 288. Plaintiffs here make the same arguments. They allege that their members "include" individuals who are "at risk" of being "erroneously removed from the voter rolls," that the Purge Program will "hamper" "core voter registration and engagement efforts," and strain financial and staff resources and force reallocations. However, as both Campaign Legal Center and La Union explain, those circumstances do not confer Article III organizational standing.

Furthermore, Plaintiffs' allegations fail to allege facts that permit an inference of a concrete pending injury-in-fact traceable to Dallas County. Similar to Plaintiffs' allegations regarding Collin and Denton counties, with respect to Dallas County Elections Administrator Adams, Plaintiffs aver:

- First, some counties engaged in no investigation whatsoever and sent SAVE NonCitizenship Notices to all voters on the lists within days of Defendant Secretary of State's October 21, 2025 guidance email to counties without any effort to verify the SAVE results relayed on the Purge Lists. Among those counties include Defendant counties Brazoria, Collin, Dallas, and Denton.

- Dallas County sent its Notice letters to over 100 voters on October 23, 2025, without conducting any preliminary investigation of the citizenship status of flagged voters.
- In Brazoria, Collin, Dallas, and Denton counties, election officials were aware that many of the flagged voters had registered to vote at DPS yet failed to take the investigative step of verifying with DPS whether those voters had provided proof of citizenship when they registered.

Plaintiffs' contentions about Dallas County simply do not meet threshold plausibility requirements, and indisputably fail to demonstrate standing. There are wholly missing fundamental allegations of any concrete pending injury-in-fact traceable to Dallas County. At most, Plaintiffs' allegations confirm that Dallas County sent out notices, as required by Texas Election Code § 16.0332. Notably absent, however, is any allegation that there is a specific individual in Dallas County who is a legal resident and whose voter registration card is and/or was incorrectly cancelled due to citizenship status. There is no allegation that a specific Dallas County resident was removed improperly as a result of the Voter Purge. Sheer speculation and pure conjecture about alleged non-specific injuries to yet identified persons cannot support standing.

2. Plaintiffs raise merely a generalized grievance.

A plaintiff does not state an Article III case or controversy merely by raising a generalized grievance about government and seeking relief that benefits it no more than it benefits the general public. Lance v. Coffman, 549 U.S. 437, 442 (2007). As the Supreme Court explained in Lance, where the "only injury plaintiffs allege is that the law—specifically the Elections Clause—has not been followed," this "is precisely the kind of undifferentiated, generalized grievance about the conduct of government that we have refused to countenance in the past." Id. at 442. Simply put, allegations that the law has not been followed do not constitute an injury in fact. Id. Because Plaintiffs' claims that Administrator Adams somehow failed to follow the law are generalized grievances that affect Plaintiffs (or more precisely, affect

Plaintiffs' constituent members) the same as any other citizen, Plaintiffs do not have standing. Id. at 442.

3. Plaintiffs' alleged future injuries are wholly speculative and are easily remediated.

Next, Plaintiffs have no actual injury because their claimed harm has not occurred—and might never occur. A future injury confers standing only if it is imminent, and not speculative. Stringer, 942 F.3d at 720-21. For a future injury to be imminent, there must be a substantial risk that the injury will occur. Id. at 721. Administrator Adams is a diligent and conscientious election administrator who takes the suffrage of Dallas County voters with the outmost seriousness. If Plaintiffs are aware of any such injuries, it is a matter that Administrator Adams would like to know.

However, review of the allegations against Administrator Adams in Plaintiffs' Complaint, as discussed above, underscores that Plaintiffs' supposed injuries—at least those attributed to Administrator Adams—are highly speculative and wholly hypothetical. Essentially, Plaintiffs' Complaint speculates that the Defendants, in various ways, have increased the risk of purging valid voters in the future based on citizenship status. But the Fifth Circuit has rejected the concept of probabilistic standing "based on a non-particularized increased risk—that is, an increased risk that equally affects the general public." Shrimpers and Fishermen of RGV v. Tex. Comm'n on Envtl. Quality, 968 F.3d 419, 424 (5th Cir. 2020). Because Plaintiffs have no imminent injury-in-fact, they lack standing. Id.

Equally problematic for Plaintiffs is that their perceived fear of improperly removing legitimate voters from the voter lists may be remediated, and is expressly addressed by the Texas Election Code § 16.037, a provision notably omitted in Plaintiffs' Complaint. Specifically, Texas Election Code § 16.037(a) provides, in pertinent part, that: "[i]f the registrar determines after cancellation of a registration that the registration should not have been canceled, the registrar shall reinstate it." A reinstatement of a registration takes effect immediately. See TEX. ELEC. CODE § 16.037(d). But, Plaintiffs do not even get to this point as they have yet to even allege

that Dallas County has in fact incorrectly cancelled even a single voter because of citizenship status.

For all of these reasons, Plaintiffs fail to plead facts sufficient to confer Article III standing.

C. Plaintiffs' claims present a nonjusticiable political question.

Additionally, the Court lacks subject-matter jurisdiction over Plaintiffs' claims because the claims present nonjusticiable political questions, over which Administrator Adams has no control. Under the political question doctrine, a claim is nonjusticiable if it would improperly require a court to review decisions exclusively within the purview of the political branches of government. Kuwait Pearls Catering Co., WLL v. Kellogg Brown & Root Servs., Inc., 853 F.3d 173, 178 (5th Cir. 2017). The political question doctrine is primarily a question of separation of powers. Baker v. Carr, 369 U.S. 186, 210 (1962). "At its core, the political question doctrine 'excludes from judicial review those controversies which revolve around policy choices and value determinations constitutionally committed for resolution to the halls of Congress or the confines of the Executive Branch.'" Spectrum Stores, Inc. v. Citgo Petroleum Corp., 632 F.3d 938, 950 (5th Cir. 2011). In Baker, the Supreme Court outlined six factors, any one of which is sufficient to indicate the presence of a nonjusticiable political question:

> [1.] a textually demonstrable constitutional commitment of the issue to a coordinate political department; or [2.] a lack of judicially discoverable and manageable standards for resolving it; or [3.] the impossibility of deciding without an initial policy determination of a kind clearly for nonjudicial discretion; or [4.] the impossibility of a court's undertaking independent resolution without expressing lack of the respect due coordinate branches of government; or [5.] an unusual need for unquestioning adherence to a political decision already made; or [6.] the potentiality of embarrassment from multifarious pronouncements by various departments on one question.

Spectrum Stores, 632 F.3d at 949 (quoting Baker, 369 U.S. at 217). Of those factors, the "dominant consideration" is whether the Constitution's text demonstrably commits an issue to a coordinate political branch. Id. at 950. That factor is dispositive, as the Constitution explicitly

commits the determination of the time, place, and manner of conducting elections to the States. U.S. Const. art. I, § 4.

Here, as discussed previously, the cusp of Plaintiffs' claims against Administrator Adams arise from the Texas Legislature's policy determination, through the actions of the State Secretary of State, about the conduct of local elections, the operation of voting sites, and the State's obligations under the NVRA. Because the United States Constitution explicitly commits to the States the authority to determine the time, place, and manner of elections, U.S. Const. art. I, § 4 …

IV. PRAYER

WHEREFORE, PREMISES CONSIDERED, Defendant Paul Adams, in his official capacity as Dallas County Elections Department, moves the Court to dismiss all claims against him from Plaintiffs' Complaint, that Administrator Adams be granted his reasonable and necessary attorney fees and costs as provided by 52 U.S.C. § 10310(e) and 42 U.S.C. § 1988, and that the Court grant him all such other and further relief to which he is justly entitled.

Respectfully submitted,

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*Application for admission to be filed

CERTIFICATE OF SERVICE

I hereby certify that on 12 June 2026, I electronically filed the foregoing document with the clerk of the court for the U.S. District Court, Western District of Texas, using the electronic case filing system of the court. The electronic filing system sent a "Notice of Electronic Filing" to the undersigned and to all following attorneys of record who have consented in writing to accept this Notice as service of this document by electronic means.

/s/ Jason G. Schuette
Assistant District Attorney